



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

October 17, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

**DOT-SP 9969
(TWELFTH REVISION)**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. **GRANTEE:** (See individual authorization letter)
2. **PURPOSE AND LIMITATION:**
 - a. This special permit authorizes the transportation in commerce of small quantities of hazardous materials in a permeation device (non-specification packaging) without shipping papers, marking (except for § 172.301(c)), labeling, and placarding. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR Part 172 Subparts C, D, E, and F in that shipping papers, marking (except for § 172.301(c)), labeling, and placarding are not required and Part 173 in that non-specification packaging (permeation device) is authorized.
5. **BASIS:** This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on April 11, 2022.

6. HAZARDOUS MATERIALS (49 § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
See Appendix 1*	See Appendix 1*	See Appendix 1*	As appropriate

*On file with the Office of Hazardous Materials Safety (OHMS).

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a non-DOT specification package described as a permeation device. The permeation device consists of the following:

- (1) An inner receptacle of which is a steel or aluminum tube having a maximum volume of 80 cc.
- (2) The inner receptacle is connected to a scrubber cartridge which contains sufficient absorbent material to absorb the entire contents of the inner receptacle. The scrubber cartridge must be attached to the diffusion end of the inner receptacle by means of a hermetically tight seal as shown on GC Industries drawings 11-0172, 11-0173 and 11-0174 on file with OHMS or the diffusing end of the inner receptacle may be hermetically sealed using a pipe or tubing cap so as to contain all of the contents within the inner receptacle.
- (3) The inner receptacle and scrubber cartridge assembly must be placed in a sealed plastic bag and placed in a 2" pipe nipple with threaded caps made hermetically tight with Teflon tape or other suitable material. The pipe may be steel or polyvinyl chloride (PVC) depending on the chemical to be transported as shown in GC Industries Drawing No. 730-0017 on file with OHMS.
- (4) The complete pipe assembly must be placed in a UN 4G fiberboard box.

b. TESTING: Each inner receptacles must be capable of withstanding 2,000 psig without leakage.

c. OPERATIONAL CONTROLS:

- (1) The maximum pressure in the permeation device at 70 °F must not exceed 500 psig.

(2) No more than one inner receptacle and scrubber cartridge assembly may be placed in one pipe assembly.

(3) More than one pipe assembly may be contained within the UN 4G fiberboard box.

(4) Wherever PVC pipe is authorized, steel pipe may also be used.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING: Each UN 4G fiberboard box must be marked "DOT-SP 9969" as specified in § 172.301(c).

d. Transportation of Division 2.1 (flammable gases) and Division 2.3 (gases which are poisonous by inhalation) hazardous materials are not authorized aboard cargo vessel or aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).

e. The transportation of oxygen by aircraft is only authorized when in accordance with the October 1, 2005 edition of § 172.102(c)(2) Special Provision A52 and §§ 175.85(h) and (i).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo-only aircraft (see restrictions in paragraphs 8.d. and 8.e.).

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft, or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-13.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CH/NICKS